CREST BREEDERS INTERNATIONAL PVT LTD
versus
CHEVHU HOUSING COOPERATIVE SOCIETY LIMITED
and
USHEWEKUNZE HOUSING COOPERATIVE SOCIETY LIMITED
and
CAIN NKALA HOUSING COOPERATIVE SOCIETY LIMITED
and
MASHINGISHINGI COOPERATIVE SOCIETY LIMITED
and
TASIMUKA HOUSING COOPERATIVE SOCIETY LIMITED
and
GENEVA HOUSING COOPERATIVE SOCIETY LIMITED
and
TUZ HOUSING PROJECT SOCIETY LIMITED
and
GUKURAIVHU HOUSING COOPERATIVE SOCIETY LIMITED
and
HIGHFIELD CANAAN HOUSING COOPERATIVE SOCIETYLIMITED
and
HEBERT HOUSING SOCIETY LIMITED
and
MUJIBHA CHIMBWIDO HOUSING COOPERATIVE SOCIETY LIMITED
and
MINISTER OF LANDS, AGRICULTURE CLIMATE CHANGE, FISHERIES AND RURAL RESETTLEMENT
and
MINISTER OF LOCAL GOVERNMENT, PUBLIC WORKS AND NATIONAL HOUSING

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 14 July 2025, 24 December 2025

Court application for an order for a decree of perpetual silence

Adv *T Mpofu,* for the applicant
J Koto, for 1st to 11th respondents
No appearance for 12th and 13th respondents

TAKUVA J: This is a court application for an order for a decree of perpetual silence.The applicant seeks the following order,

"1. The 1st Respondent be and is hereby declared to have been divested of any right, title and interest in Stand number 1162, Saturday Retreat Township, Harare.

2. That the rights, title and interest in Stand number 1162, Saturday Retreat Township, Harare be and are hereby declared to be vested in the Applicant.

3. The Memorandum of Agreement entered into between the 1st and 2nd Respondent be and is hereby declared not binding upon the 1st, 4th and 5th Respondents.

4. The duty to compensate the 1st Respondent shall lie with the State . To that end the 1st Respondent be and is hereby ordered to return all monies paid to it by the Applicant.

5. 1st Respondent pays costs of suit."

Background facts

The applicant, Crest Breeders International (Private) Limited, is the lawful owner of the Remaining Extent of Saturday Retreat, held under Deed of Transfer 4035/86. In 1996, this land, previously a rural tenement, was incorporated into the City of Harare under Statutory Instrument 41 of 1996, transforming it into an urban tenement.

Between 2003 and thereafter, the first to eleventh respondents, operating as cooperative societies, unlawfully invaded the land. The courts consistently held that their occupation was illegal. Despite repeated judicial findings, the respondents have continued to initiate litigation concerning the land, in defiance of both the law and prior final court orders.

The Government, in recognition of the need to regularize the situation for bona fide occupiers, attempted to acquire the land under the Land Reform Programme. However, it was established in *Fletcher v Minister of Lands, Agriculture, Fisheries, Water & Rural Resettlement & Ors* CCZ-7-24 that urban land could not be acquired under this programme. To resolve the matter, the Government entered into an agreement with the applicant under its constitutional and statutory powers of eminent domain, ensuring that fair compensation was paid for the acquisition, in accordance with the principles articulated in *Davies & Ors v Minister of Lands, Agriculture & Water Development* 1996 (1) ZLR 681 (SC). The agreement included the transfer of 401 hectares of unoccupied land to the applicant for lawful development, while the respondents' members were to benefit in a manner consistent with the law.

The Supreme Court, in *Chevhu Housing Society Co-operative Limited* v *Crest Breeders International (Pvt)* Ltd SC-19/21, recognized the legality of the arrangement, describing the

respondents as "disgruntled illegal land occupiers" and affirming that there was "no basis in law for reversing the lawful acquisition of land and the agreement as to compensation." The apex court further criticized the respondents' leadership for operating as "land barons," distributing land that did not belong to them.

Issues for determination

The Court is called upon to determine:

1. Whether the first to eleventh respondents have engaged in repeated and persistent litigation concerning the same cause of action and subject matter, amounting to an abuse of court process.
2. Whether the applicant has demonstrated exceptional circumstances sufficient to justify the grant of a decree of perpetual silence.
3. Whether the respondents' scandalous conduct against the Supreme Court warrants judicial censure and injunctive relief.
4. The appropriate order as to costs, particularly given the respondents' conduct while represented by legal practitioners.

Analysis

The judgments of the Supreme Court are final and binding. Once pronounced, a court is functus officio, lacking authority to revisit the matter. In *Matamisa* v *Mutare City Council* (A. General Intervening) 1998 (2) ZLR 439 (SC). This principle was also emphasised in *Matsika & Anor* v *Chingwena & Ors* SC-106-23 wherein the court d;

> "…the law requires that there be finality to litigation. Consequent thereto, the decision of the court a quo on the application for condonation and extension of time to note an appeal was final in nature. This is provided for in s 169 of the Constitution as read with s 26 of the Supreme Court Act, both of which that all decisions of the Supreme Court, including those of a single judge in chambers, in non-constitutional matters are final and not subject to appeal."

The quotation underscores the principle of finality in litigation, a cornerstone of our judicial system. When the court s that "the law requires that there be finality to litigation", it is affirming the public policy imperative that disputes must, at some stage, come to an end. Endless reopening of cases would undermine legal certainty, clog the courts, and erode confidence in the administration of justice.

By holding that "the decision of the court a quo on the application for condonation and extension of time to note an appeal was final in nature", the Court makes clear that interlocutory or procedural determinations by the Supreme Court once decided, they conclusively dispose of the issue before the Court and bind the parties.

Section 169 of the Constitution of Zimbabwe provides that the Supreme Court is the final court of appeal in all matters other than those reserved for the Constitutional Court. This is reinforced by section 26 of the Supreme Court Act, which stipulates that all decisions of the Supreme Court, including those made by a single judge in chambers, are final and not subject to appeal in non-constitutional matters. The effect is to clothe even chamber applications with the same finality as judgments delivered by a full bench.

The combined import of these provisions is that once the Supreme Court has pronounced itself, it becomes *functus officio*: its judicial function in respect of that matter is exhausted. It lacks authority to revisit, vary, or reconsider its decision, save in narrowly circumscribed exceptions recognised in law, such as the correction of clerical errors or ambiguities, or where a judgment was procured by fraud.

The law recognizes the utility of a decree of perpetual silence to prevent repeated and vexatious litigation. In The South African authorities, including Brown v Simon 1905 TS 311 and *Corderoy v Union Government (Minister of Finance)* 1918 AD 512, similarly endorse the principle that courts may issue general orders prohibiting repetition of vexatious litigation. Moreover, the law prevents a person from profiting from their own wrong. In Matsika v Standard Chartered Bank 1997 (2) ZLR 389, the Court held that a litigant cannot derive advantage from fraudulent conduct, a principle highly relevant to the respondents' repeated and dishonest litigation.

On the facts, the respondents are neither owners nor lawful occupiers of the land. They have consistently sought to re-litigate matters that have already been conclusively determined by the Supreme Court, including the validity of the 18 December 2014 Agreement, the payment of compensation, and the lawful acquisition of urban land by the . Their repeated filings are vexatious, motivated by a desire to frustrate the applicant and subvert lawful processes.

The Supreme Court has explicitly condemned the respondents' conduct. In Chevhu Housing SC-19/21, it confirmed that the respondents' claims lacked merit and that their leadership engaged in the unauthorized distribution of land. The respondents' insistence on challenging these rulings before subordinate courts, despite full knowledge of the Supreme Court's pronouncements, constitutes an abuse of process and a threat to the applicant's lawful property rights.

Furthermore, the respondents have scandalized the Supreme Court in paragraphs 20, 46, and 47 of their affidavits, demonstrating not only defiance of judicial authority but also misconduct deserving of censure. This Court notes that they are represented by legal practitioners, highlighting the severity of their conduct. Such actions subvert the administration of justice and warrant the protection of the applicant through a decree of perpetual silence.

Disposition

The applicant has clearly demonstrated exceptional circumstances warranting relief. The repeated litigation, failure to pay costs, and attacks on judicial authority create a situation where injunctive relief is necessary to protect both the applicant's rights and the integrity of the judicial process. The respondents' conduct satisfies all requirements for a decree of perpetual silence, as articulated in *Mhini* v *Mapedzamombe*, and aligns with the protective rationale endorsed in *Brown* v *Simon and Corderoy v Union Government*. Vexatious and abusive litigation is curtailed and courts should uphold the dignity of the judicial process.

In the circumstances, **it is ordered accordingly**;

1. The 1st Respondent be and is hereby declared to have been divested of any right, title and interest in Stand number 1162, Saturday Retreat Township, Harare.

2. That the rights, title and interest in Stand number 1162, Saturday Retreat Township, Harare be and are hereby declared to be vested in the Applicant.

3. The Memorandum of Agreement entered into between the 1st and 2nd Respondent be and is hereby declared not binding upon the 1st, 4th and 5th Respondents.

4. The duty to compensate the 1st Respondent shall lie with the State. To that end the 1st Respondent be and is hereby ordered to return all monies paid to it by the Applicant.

5. 1st Respondent pays costs of suit.

TAKUVA J:……

Nyawo Ruzive Attorneys, applicant's legal practitioners
Koto and Company, first to eleventh responent's legal practitioners